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Critical Approach to EU law-making: French Senate's report on EU legislation

Policy Hub on Better Law-Making



Policy Department for Justice, Civil Liberties and Institutional Affairs
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Critical approach to EU law-making: French Senate's report on EU legislation

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Abstract

The Policy Hub on Better Law-Making hold on 18 February, 2025 focused on challenges to EU law making. The French Senate's report was presented and perceived as a wake-up call, urging a shift towards effective, accessible law-making in the EU.

Academics highlighted issues of excessive legislation, the need for clearer and citizen-centered laws. They emphasized the need for simplifying legal texts, improving democratic scrutiny by the European Parliament, and fostering collaboration with academia.

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CONTENTS

LIST OF ABBREVIATIONS 4

EXECUTIVE SUMMARY 5

1. REPORT OF THE FRENCH SENATE ON EU LAW MAKING: PRESENTATION BY MR. GUILLAUME RENAUDINEAU 6

1.1. Normative Drift of the EU 6

1.2. Inadequacy of the EU's Response 7

1.3. Recommendations 7

2. BETTER EU LEGISLATION: THE 2024 FRENCH SENAT REPORT – PRESENTATION BY PROF. DR HELEN XANTHAKI 9

3. PARTICIPATORY DEMOCRACY AND LEGISLATIVE DRAFTING IN THE EU – PRESENTATION BY PROF. DR MAURO ZAMBONI 12

3.1. Survey among members of the President of the International Association of Legislation 12

3.2. Citizens—the primary audience 13

3.3. National governments and institutions 13

3.4. Artificial intelligence in legislation drafting 14

4. COMPLEXITY, FRAGMENTATION AND VALUE OF EU LEGISLATION – PRESENTATION BY PROF. J. SCOTT MARCUS 15

4.1. Impact assessments 16

4.2. Evaluation of the legislation 16

ANNEX 18

5. PRESENTATION BY GUILLAUME RENAUDINEAU 18

6. PRESENTATION BY PROF. DR HELEN XANTHAKI 28

7. PRESENTATION BY PROF. DR MAURO ZAMBONI 32

LIST OF ABBREVIATIONS

AI	Artificial Intelligence
JURI	Committee on Legal Affairs
EP	European Parliament
ECJ	European Court of Justice
EPRS	European Parliamentary Research Service
OECD	Organisation for Economic Co-operation and Development
TEU	Treaty on European Union
TFEU	Treaty on the Functioning of the European Union

EXECUTIVE SUMMARY

The second Policy Hub event, held on February 18, 2025, focused on addressing the challenges in EU law-making, participatory democracy, and legislative drafting, with the goal of improving the accessibility, clarity, and effectiveness of EU legislation. The event featured presentations by Mr. Guillaume Renaudineau, Prof. Dr. Helen Xanthaki, Prof. Dr. Mauro Zamboni and Prof. J. Scott Marcus followed by a roundtable discussion on practical solutions. Study on the first Policy Hub held on December 4, 2024 can be found here.

Mr. **Guillaume Renaudineau** presented the report of the French Senate on EU law-making, focusing on the excessive complexity, lack of impact assessments, and inadequate evaluation of EU legislation. He highlighted the need for reforms to simplify EU legislation and improve its impact on citizens and businesses. He also emphasized that the increased use of delegated and implementing acts, which bypass the legislative scrutiny of the European Parliament, further complicates the law-making process and undermines transparency.

Prof. Dr. **Helen Xanthaki** emphasized the importance of ensuring EU law is written in a way that promotes participation, understanding, and trust. She pointed out that participatory democracy, as enshrined in the Treaty of Lisbon, cannot function effectively if legislation is opaque. Prof. Xanthaki also highlighted the need for EU legislation to be accessible to all, not just to legal experts, and for legislative processes to include citizens more meaningfully, ensuring that they have the tools to engage with and comprehend the laws that affect them.

Prof. Dr. **Mauro Zamboni** opened the event with a discussion on the critical need for clarity in legislative drafting within the EU. He stressed that while the substance of EU legislation is often sound, its complexity and legal jargon hinder its accessibility and understanding by citizens, businesses, and national governments. Citing a survey conducted among members of the International Association of Legislation, Prof. Zamboni emphasized that EU laws often appear to be written for EU officials rather than citizens, leading to disengagement. He also warned against an overreliance on artificial intelligence for interpreting legislation, advocating for clearer drafting from the outset.

Prof. **J. Scott Marcus** addressed the broader issues of legislative quality and the growing complexity of EU law, referencing the French Senate's concerns. He discussed the challenge of balancing EU competences with national responsibilities, especially in the face of crises. He critiqued current impact assessments, highlighting their lack of follow-up and inadequate evaluation mechanisms. Prof. Marcus also discussed the ineffective "one in, one out" rule, which aims to reduce regulatory burdens but often falls short in practice. He emphasized the importance of removing outdated legislation and simplifying the overall legislative process.

The roundtable **discussion** that followed explored these ideas in greater depth.

In conclusion, the event underscored the need for systemic reforms in EU law-making to make legislation more accessible, understandable, and effective in serving its intended audiences. The insights shared will guide future efforts to improve the quality of EU legislation, foster democratic participation, and enhance the trust and engagement of citizens in the legislative process.

1. REPORT OF THE FRENCH SENATE ON EU LAW MAKING: PRESENTATION BY MR. GUILLAUME RENAUDINEAU

*Mr. Guillaume Renaudineau has been working for the **French Senate** for more than 25 years. Since 2022, he has served as the representative of the French Senate to the European institutions. The French Senate is the upper chamber of the French Parliament and represents the territories, making it very close to citizens. Compared to the National Assembly, the Senate is more focused on territories and the application of legislation. The French Senate issued a report on the EU legislation on December 4, 2024. During the Policy Hub, he was presenting his own views, he was not speaking on behalf of the French Senate.*

The information report was presented by three French senators: Mr. Jean-François Rapin (Les Républicains, EPP in European Parliament), Ms. Catherine Morin-Desailly (Union centriste), and Mr. Didier Marie (groupe socialiste, S&D in European Parliament). They come from different political parties and the report was adopted unanimously by the Committee on European Affairs.

Better law-making is of crucial importance for the EU. This morning, along with the French senators, we participated in the **Interparliamentary Conference on European Economic Governance at the European Parliament with Mario Draghi**, where we also discussed better legislation. The European Commission is expected to present the first proposals in this area soon. The French Senate considers this topic not merely a technical issue but a **significant political matter**, essential for European citizens and the future of the EU.

To prepare this report, the senators held discussions in Paris and Brussels with representatives of French authorities, the European Commission, the European Parliament, the Council, the Regulatory Scrutiny Board, as well as small and large companies. My presentation will be divided into three parts: first, the normative drift of the EU; second, the inadequacy of the responses provided by European institutions; and finally, the recommendations.

1.1. Normative Drift of the EU

The title of this section was a compromise among the three senators. One initially proposed "normative madness," but that was deemed too strong, so a more neutral term was chosen. As you know, the last legislative term was marked by intense regulatory activity due to crises such as the war in Ukraine, the COVID-19 pandemic, and the energy crisis. **According to the Mario Draghi report, approximately 13,000 regulatory texts were adopted by the EU between 2019 and 2024, compared to 5,500 in the United States.**

A total of **515 legislative acts were adopted during this period**, representing a **25% increase** compared to the previous legislative term. This increase in legislative production is, according to Draghi, one of the reasons for the **EU's lack of competitiveness compared to the United States**. Studies suggest that the administrative burden imposed by EU legislation represents an annual cost of approximately **1.3% of European GDP.** Another European study estimates that better EU legislation could provide economic gains of over **€2,200 billion.**

The report, which is currently available only in French but will soon be translated into English, highlights concerns regarding fragile legal bases for many initiatives. It criticizes the controversial use of Articles 114, 122, and 352 of the *Treaty on the Functioning of the European Union*. **The French Senate also regrets the increasing preference for regulations over directives.** From the perspective of national parliaments, **directives better respect the diversity and competence of Member States, as they require transposition into national law.** Over the last decade, the number of regulations has

significantly increased. For example, in 2023, 70 regulations and 38 directives were adopted, whereas in 2009, 59 regulations and 80 directives were adopted—twice as many directives as regulations at that time.

The report also criticizes the **excessive use, as the legal basis, of Article 122 of the TFEU**, which allows for emergency measures without scrutiny from either the European or national parliaments.

Additionally, it highlights concerns about the **growing use of delegated and implementing acts**, which are not subject to parliamentary oversight. For instance, in 2023, European institutions adopted 171 delegated acts and 1,096 implementing acts.

1.2. Inadequacy of the EU's Response

The report reviews various EU initiatives on better regulation over the past 20 years, **such as impact assessments**, the creation of the **Regulatory Scrutiny Board**, and the **"one in, one out" rule**. However, the French Senate considers these measures **insufficient**. Many legislative proposals lack proper impact assessments, and when they do exist, they are often inadequate or incomplete.

Moreover, **impact assessments are frequently available only in English or French**, limiting accessibility. The report argues that substantial amendments introduced by the European Parliament or the Council should also be accompanied by impact assessments.

The report further emphasizes **concerns regarding the subsidiarity principle.** Since the Lisbon Treaty came into force 15 years ago, only three proposals have been subject to the **"yellow card" procedure**, which national parliaments use to challenge legislative proposals that do not respect national competencies. **The report suggests strengthening this mechanism, for example, by extending the time limit for national parliaments to scrutinize legislation.**

1.3. Recommendations

The French Senate's report provides 12 recommendations:

1. Invite the Member States meeting in the Council to play their part in checking the legal basis of a European legislative initiative.
2. Provide for the inclusion in all European legislation of a "shield clause" preserving Member States' competence in matters of public order and national security.
3. Promote dialogue between national and European judges to ensure that each Member State is always in a position to accept its responsibilities.
4. Prioritise the use of directives and limit the Commission's abusive use of implementing acts and delegated acts.
5. Extend the scope and improve the quality of impact assessments.
6. Provide for systematic ex-post evaluation of legislative acts.
7. Reduce the administrative burden on businesses, particularly SMEs, by subjecting all new European initiatives to a competitiveness test on the global market and a reinforced SME test.
8. Make it easier for national parliaments to monitor compliance with the subsidiarity principle
9. Encourage the Member States in the Council to examine the compliance of any European initiative with the principles of subsidiarity and proportionality before it is negotiated.

10. Reinstate the post of Vice-President of the European Commission with responsibility for simplification and subsidiarity
11. Ensure respect for linguistic diversity and place of French.
12. Take greater account of the specific characteristics of territories, particularly overseas territories.

2. BETTER EU LEGISLATION: THE 2024 FRENCH SENAT REPORT – PRESENTATION BY PROF. DR HELEN XANTHAKI

We have received the French synoptic quote, so let's try and figure out what this tells us from the perspective of legislative drafting, which is my field. The first message is that for equal legislation, we can do better. The French Senate tells us that this is quite important now because there are **major challenges around the world**—Ukraine being the most prominent one, and developments in the US being another. The expectations of EU citizens are high; they expect answers and interventions from the EU. However, the report tells us that EU citizens perceive the EU as technocratic, remote, and inefficient.

What are the issues?

The European Affairs Committee in the French Senate has raised concerns about bad regulation. Bad regulation in the sense that there is a disconnection from realities on the ground and also that the European Commission has exceeded the expected executive volume. There is excessive implementation of acts and delegated acts. We either have **bad regulation or excessive regulation.**

The EU's administrative burden accounts for up to 150 billion annually, which is 1.3% of the European GDP. We also have excessive legislation. Apologies, I am Greek, so I will use the Greek term accepted by all—polynomial laws. We have too many laws: 13,000 texts from 2019 to 2024, as opposed to 5,500 in the US. Additionally, we have bad legislation in the sense that we have a **growing preference for regulations rather than directives.** We have **flawed impact assessments** and a **lack of adherence to inter-institutional agreements on better law-making.**

This is quite a critical report. **Should we be surprised by what the French Senate tells us?** The answer is no. We cannot act surprised. First, we are yet to build a single jurisdiction where legislation and regulation are perfect. It comes as no surprise that there are issues in the EU as well. It also comes as no surprise because national parliaments have been critical of specific instruments.

The UK was critical of the GDPR, Germany criticized the Water Framework Directive, and other countries have had concerns about directives related to energy performance in buildings, financial markets, and more.

This is a list of occasions where at least 15 national parliaments were critical of EU legislation on the grounds that it was complex and unintelligible, which posed risks for implementation and enforcement. The message is clear:

1. UK on GDPR
2. France on CAP
3. Germany on the Water Framework Directive
4. Italy on Markets in Financial Instruments Directive (MiFID II)
5. Holland on Directive on the Energy Performance of Buildings (EPBD)
6. Spain on the Directive on Waste Electrical and Electronic Equipment (WEEE)
7. Denmark on Directive on Consumer Rights (CRD
8. Sweden on Directive on Payment Services (PSD2)
9. Poland on Directive on the Restriction of Hazardous Substances (RoHS)
10. Austria on Directive on Public Procurement
11. Finland on Directive on the Protection of Animals Used for Scientific Purposes
12. Portugal on Directive on the Deployment of Alternative Fuels Infrastructure
13. Ireland on Directive on the Protection of Personal Data

14. Belgium: Directive on the Energy Efficiency of Buildings
15. Greece on Directive on the Protection of the Environment through Criminal Law

We all agree that there is an issue, but what should we do about it? Whether a specific instrument was unfairly criticized or was criticized due to national interests is neither here nor there. The environment is a given.

Can we change that? Yes, we can.

We can change this within the EU. And this is where I differ from the French approach. I absolutely agree with the identification of some of the issues, but I think the solution can and should come from within the EU, rather than through a different balance between the EU and national parliaments. We need to change the EU's legislative mentality into a citizen-centered lawmaker mentality.

It is time to leave formalities and traditions to one side and prioritize the operationalization of effectiveness. How can we do it better? Better for whom? To improve efficacy, EU lawmakers must set clear policy goals. What are we trying to achieve? **Regulation must be driven by clear objectives.** No one, certainly not the EU, attempts to legislate and regulate without a purpose.

Let us share this with our citizens. Let us communicate the message through effective draft texts. Let's conduct both pre- and post-legislative scrutiny, undertaken by a learned and well-equipped European Parliament. Let's strengthen the Parliament by providing it with the tools and technical capacity to be effective. Then, let's act upon post-legislative conclusions by taking concrete action—repealing laws, refining laws, and simplifying them.

We need a **holistic change in the way we draft legislative acts**. My personal view is that current drafters are trained in an outdated publishing style based on international agreements that belong in the past. They are therefore unable to serve their true purpose: **communicating the message effectively.** Our legislative instruments should be structured into three parts:

1. **Speaking directly to citizens**
   This section should address questions such as: What is the added value for me? Why is this legislation necessary? What are we trying to achieve? What regulatory goal is being pursued? What rights and obligations does this act introduce for me? The language should be simple and sophisticated, breaking away from traditional legalistic jargon.
2. **Speaking to Member States**
   This section should outline the obligations that Member States must adhere to, any rights and discretions they have, and the administrative burdens imposed upon them.
3. **Speaking to lawyers and judges**
   This section should contain specialized legal language, as we cannot abandon legal formalities altogether.

We should not leave simplification efforts to Member States, as they have different agendas and tend to copy most of the EU's legislative texts anyway.

So, what about the French Senate report? For me, it is an **exceptional piece of research** and eloquent drafting. It is not a surprise, but rather a **brilliant and eloquent wake-up call for all of us involved in legislation and regulation.** I do not think many people would disagree that EU regulation and legislation suffer from "pathogenesis," or flawed and excessive law-making. However, I disagree with the notion that the solution must come from outside the EU. Instead, it must come from within the EU, in the form of a citizen-centered approach.

Legislative texts should not be burdened with unnecessary formalities but should be expressed in a citizen-centered drafting style. **EU acts should be restructured to speak clearly to citizens, Member State authorities, and legal professionals.**

Why? Because **the EU must survive against populism and extremism**. It must do so for the sake of **competitiveness**, but also for **longevity**—to remain with us long enough to fulfill its vision.

How do we achieve this? By introducing **systematic and regular reflection** on legislative drafting. In my view, we need to **establish a committee dedicated to better law-making**, in cooperation with **European academia**. We need a standing working group composed of multidisciplinary experts to assess every step of the legislative process, ensuring operationalization and effectiveness.

And we must start now. The reason is simple: we have another inter-institutional agreement on better law-making in the making. **Let's not waste time chaining ourselves to outdated formalities again. Let's take a reflective, holistic, and innovative approach to push the agenda forward.**

3. PARTICIPATORY DEMOCRACY AND LEGISLATIVE DRAFTING IN THE EU – PRESENTATION BY PROF. DR MAURO ZAMBONI

Legislation is more than just a set of rules. It is the main channel through which the European Union communicates with its citizens and institutions. The **clarity** and **accessibility** of this communication determine how well the law is **understood, accepted, and implemented**. If the law is incomprehensible to its audience, then participation, compliance, and trust in the system are significantly weakened.

The Treaty of Lisbon in Article 11 enshrines **participatory democracy** as a **fundamental principle of EU** governance. The principle requires that citizens and stakeholders be actively consulted and engaged in the legislative process. However, consultation alone is not enough. We ensure meaningful participation if legislative texts are inaccessible. Full engagement is impossible.

Regulation is not just about setting out the rules and obligations. As I said, it is fundamentally an exercise in communication. A well-drafted law is one that conveys its message clearly, ensuring that its intended audience understands the rights, responsibilities, and the rationale behind the legislation. Within the EU, legislative drafting is particularly complex. We are fully aware that due to the multi-level nature of governance, EU laws must address **multiple audiences, including national governments, courts, businesses, and citizens.** Achieving clarity across such a diverse readership is a challenge, but it is an essential one. If laws are ambiguous, convoluted, or filled with unnecessary technical jargon, then even the best policy initiative risks being misunderstood, improperly implemented, or even disregarded altogether.

3.1. Survey among members of the President of the International Association of Legislation

For the purpose of this meeting and in my capacity as President of the International Association of Legislation, I have conducted a survey among more than 400 individual and institutional members of the Association who operate within the EU framework to understand their perspective on the positive and negative aspects of EU legislation. It is important to note that nearly all these respondents, both scholars, practitioners, and public officials, whether individually or institutionally, work within or in close collaboration with the legislatures of all the EU Member States. In short, they are fully ingrained in national legislative discourse in their professional capacities.

As also pointed out, the results of this survey align with the concerns highlighted in various national reports, particularly, but not only, the French Senate's report. While respondents generally **recognize the high quality of the substantive content of EU legislation**, acknowledging what it aims to achieve, **there is widespread criticism of the manner in which this content is delivered.** The predominant issue is the **convoluted** and often **opaque nature of EU legislative drafting**, which obscures the merits of the legislation itself. Its **overly complex format and presentation often overshadow the otherwise positive aspects of EU law.**

As the survey pointed out, the fundamental question in legislative drafting is: **who is the law actually written for?** Based on the answers provided by the respondents, in the context of the European Union, legislation is meant to serve three primary audiences:

1. Citizens, both individuals and private organizations and businesses;
2. National governments and institutions;
3. EU institutions themselves.

However, the way EU laws are currently drafted does not reflect an equal prioritization of these groups. Instead, **legislation appears to cater primarily to those already deeply embedded within EU institutions,** often at the expense of those who must interpret, implement, and live under these rules.

3.2. Citizens—the primary audience

Although citizens, especially individuals and businesses, are the **ultimate recipients of most EU legislation**, they are far from its intended or ideal readers. In reality, EU legal texts are often highly complex and difficult to navigate, requiring extensive technical knowledge of legal structures, familiarity with specialized legal terminology, an understanding of EU-specific legislative procedures and processes, and a background in the historical and comparative aspects of EU regulations in the relevant field.

For the average citizen, whether an individual or a business owner, this complexity makes EU law largely **inaccessible**. Instead of engaging directly with legislation, they are often forced to rely on intermediaries, consultants, or bureaucratic officials to interpret how these laws affect them. Yet even these intermediaries frequently struggle to grasp the full meaning of such convoluted legal texts, often navigating in a phenomenon of uncertainty. This is deeply concerning. **If laws are meant to govern the lives of citizens, then they should also be written in a way that citizens can understand. A democracy cannot function effectively if its laws are incomprehensible to the very people it seeks to govern.**

3.3. National governments and institutions

While national governments and institutions are better equipped to interpret complex legal texts, they often find themselves struggling with the format and structure of EU legislation. **Legislative bodies across Europe are repeatedly criticizing EU laws for their lack of clarity, the absence of systematic impact assessments, and the limited availability of mechanisms for ex-post evaluation of legal performance.** Normally, EU laws often seem to be written for the EU institutions themselves rather than for the people or national governments that must implement them. The structure, language, and complexity of EU legislation suggest that it is primarily drafted by EU officials for other EU officials. In fact, in many cases, only those working within EU institutions are fully equipped to understand every detail of these legislative texts without needing further interpretation.

On one hand, this makes sense. **Accuracy and consistency within the EU legal framework are crucial.** Clear communication among EU institutions is important. But here is the real issue. Legislation is not just about drafting a message. It is about writing a **clear message**—that is, making sure that the message is understood by those who need to act on it. And right now, this is where things become problematic.

Let's consider some key questions:

- If national governments struggle to interpret EU laws, how can they effectively implement them?
- If citizens cannot understand the legislation, how can they know their rights and responsibilities?
- If EU laws are only clear to those inside EU institutions, can we really say that they are serving their purpose?

This is why legislative drafting needs to go beyond technical accuracy. **Laws must be clear, accessible, and usable, not just for EU officials but also for the governments, businesses, and citizens they ultimately affect.**

3.4. Artificial intelligence in legislation drafting

Artificial intelligence is increasingly being used to improve the clarity and accessibility of legislation. Many legal scholars and EU law professors utilize AI to reorganize and consolidate newly enacted EU laws, transforming non-consolidated versions into comprehensive consolidated texts. This demonstrates AI's potential to facilitate legal interpretation and research. However, the seemingly beneficial use of AI also reveals an underlying problem. **While the EU does provide consolidated versions of legislation, these documents are unofficial and lack legal status.** This means that legal professionals often treat them as interpretative tools rather than authoritative sources.

The responsibility of ensuring clarity should not fall on AI tools. Rather, the drafting process itself should prioritize accessibility and coherence from the outset. If AI becomes a necessary tool for interpreting legislation, it raises a fundamental issue about the intended audience of EU laws. Laws should be written in a manner that eliminates the need for external tools to make them comprehensible. The reliance on AI for legislative interpretation risks signaling that EU lawmakers are drafting primarily for an exclusive audience of legal experts rather than for the broader public and national institutions. Moreover, **the use of AI-driven interpretation could alter the legal meaning of texts, particularly if controlled by private entities outside the EU, such as companies based in the United States or China.** This introduces concerns about **accuracy, bias, and external influence on EU law.**

To conclude, **participatory democracy cannot function effectively if legislation is not written in an accessible and understandable manner.** If laws are unclear, compliance suffers, national institutions struggle with implementation, and citizens disengage. Clarity in legislative drafting is not merely a technical concern; it is a fundamental democratic necessity.

4. COMPLEXITY, FRAGMENTATION AND VALUE OF EU LEGISLATION – PRESENTATION BY PROF. J. SCOTT MARCUS

Coming to the report from the French Senate, it seems to me that there are two main messages. The first is a **complaint about the quality of European legislation**. The second is an **argument for a transfer of competence from the institutions back to the Member States.** These are both important aspects.

As far as quality is concerned, if you look at European legislation overall, as Professor Xanthaki pointed out, most international evaluators—such as the OECD—ra**nk the European institutions and law-making process among the best in the world**. However, this sets quite a **low bar**, and there is **enormous room for improvement.** Most of the substantive remarks in the Senate report I could agree with, and I will walk through a number of them point by point to dig into the details.

On the question of where competences belong, it is important to remember how we got to where we are today. The Treaties themselves have a fairly clear allocation of responsibilities. There are areas where the European Union has primary competence, such as competition law, where cases above a certain threshold clearly fall under EU jurisdiction. Many other areas, however, fall under supporting competence or hardly any EU competence at all, such as education, labor, and health. In these cases, primary responsibility rests with the Member States, and in general, this is appropriate.

However, the Senate report is correct in saying that t**here has been a drift toward more EU competence over the years, particularly in the last five years.** This drift has been driven by significant crises—such as the COVID-19 pandemic, Russia's invasion of Ukraine, and increasing geopolitical instability, including challenges from an increasingly aggressive China and an unpredictable United States. In this context, the transfer of more competence to the EU has been necessary. Therefore, the second thrust of the Senate report, arguing for a reallocation of powers back to Member States, is either misguided or poorly timed. More Europe is needed, not less. Much of the Senate report's argument is a matter of tone rather than substance, but as the French saying goes, '*C'est le ton qui fait la chanson*' —the tone makes the music. In that sense, I believe much of the report is heading in the wrong direction.

Now, let's talk about **subsidiarity**. I am not opposed to subsidiarity, despite what you just heard me say. The Treaties rightly state that matters best handled at the Member State level should be left to the Member States. That principle, combined with proportionality, is already embedded in EU law and is appropriate. However, we also know that divergent laws and divergent implementation of laws in the Member States cause major problems, impacting the single market and hindering European businesses.

For example, **surveys from Eurochambres**—the European Association of Chambers of Commerce—show that inconsistent national implementations of European law are among the top concerns for businesses. The EU's push for greater harmonization of laws and their implementation is not misguided. This effort manifests in various ways, one of which is the shift from directives to regulations. This shift aims to ensure stronger harmonization. While this is not the only method, it is an effective one. Greater harmonization is needed in many areas, though not all. The balance depends on the specific nature of the legislation—there is no one-size-fits-all solution. However, given the current geopolitical climate, where **Europe risks being squeezed between an aggressive China and an aggressive United States, failing to function as a united Europe could lead to long-term decline**, as pointed out by Draghi and Letta in their reports. Striking the right balance is critical, and again, I believe the French Senate report largely points in the wrong direction.

4.1. Impact assessments

Regarding better regulation, there is significant room for improvement. **Many focus on impact assessments, but I would argue that this is the least broken part of the process.** After 20 years of progressive improvements and the work of the Regulatory Scrutiny Board, **impact assessments have become fairly robust**—though not perfect. The Senate report and the comments made today correctly highlight that many legislative measures are submitted without an impact assessment. There is an exception for urgent cases, but urgency is often invoked too readily. A report I was involved in concluded that the urgency excuse is overused.

One proposed solution is that when legislative measures are accelerated without an impact assessment, a follow-up assessment—possibly abbreviated—should be conducted afterward to cover what was missed. A more fundamental problem, however, is that i**mpact assessments focus only on legislative measures as submitted.** Nobody goes back to evaluate the measures after they have been enacted or implemented, which is a serious issue.

There is also a political economy problem. The European Parliament and Council, understandably, want to be seen as taking action, which leads to a tendency to add new measures rather than leave things as they are. Many of these additions are feel-good measures that do not necessarily add value, and no one is assessing the costs of these legislative additions. As a result, **mechanisms meant to control legislative burden—such as the "one in, one out" rule—struggle to function effectively because the actual cost of legislation is unknown. A proper evaluation process would help, but we lack that today.**

4.2. Evaluation of the legislation

There are two **major problems with evaluation**. First, the European Commission is essentially grading its own homework. This should be done by an **independent body, such as a strengthened European Court of Auditors.** Second, **nobody pays attention if evaluations are not conducted**, and even when they are done poorly, they go largely unnoticed. Evaluations are often treated as mere checkbox exercises by the Commission.

We also have a broader problem with **legislative growth**. The claim that there are 13,000 new legislative acts is misleading; the actual number of measures that go through **the full legislative process is closer to 400 per term**, increasing by about 15% from one term to the next—with the exception of the Juncker Commission, which actively sought to reduce the numbers. Despite this, **the length and complexity of legislative measures have roughly doubled over the past 20 years.**

The fundamental issue is that while we continuously add new legislation, **we lack mechanisms to remove outdated or redundant measures.** Processes like evaluation and the REFIT program, which aim to simplify legislation, should be used more frequently. The Competitiveness Compass has outlined this need, but actions must follow words. **The "one in, one out" rule is ineffective if it only applies to administrative costs rather than operational costs.** Other mechanisms, such as the Single Digital Gateway, also require reinforcement and better study to understand why they are not functioning as intended.

Many of these points appear in the Senate report, and they require urgent action. Another major issue is the lack of thorough SME and competitiveness checks in the impact assessment process. These are often weak, treated as afterthoughts, with only a brief mention of potential effects rather than the necessary level of analysis.

The Competitiveness Compass and the mission letter to Commissioner Dombrovskis include many of these concerns on paper. The key question is whether they will translate into action. Over the years,

there have been numerous efforts to simplify legislation, but few have yielded significant results. The Senate report is correct in stating that a Vice President should have been assigned to simplification rather than a Commissioner. However, at least we now have a Commissioner specifically tasked with simplification, and he must deliver. Dombrovskis, an exemplary technocrat, is likely the right person for the job. The real question is whether we can make this work.

The presentations were followed by a roundtable discussion with participation of civil servants from the European Parliament, the European Commission, the Committee of Regions and the European Economic and Social Committee.

ANNEX

5. PRESENTATION BY MR GUILLAUME RENAUDINEAU







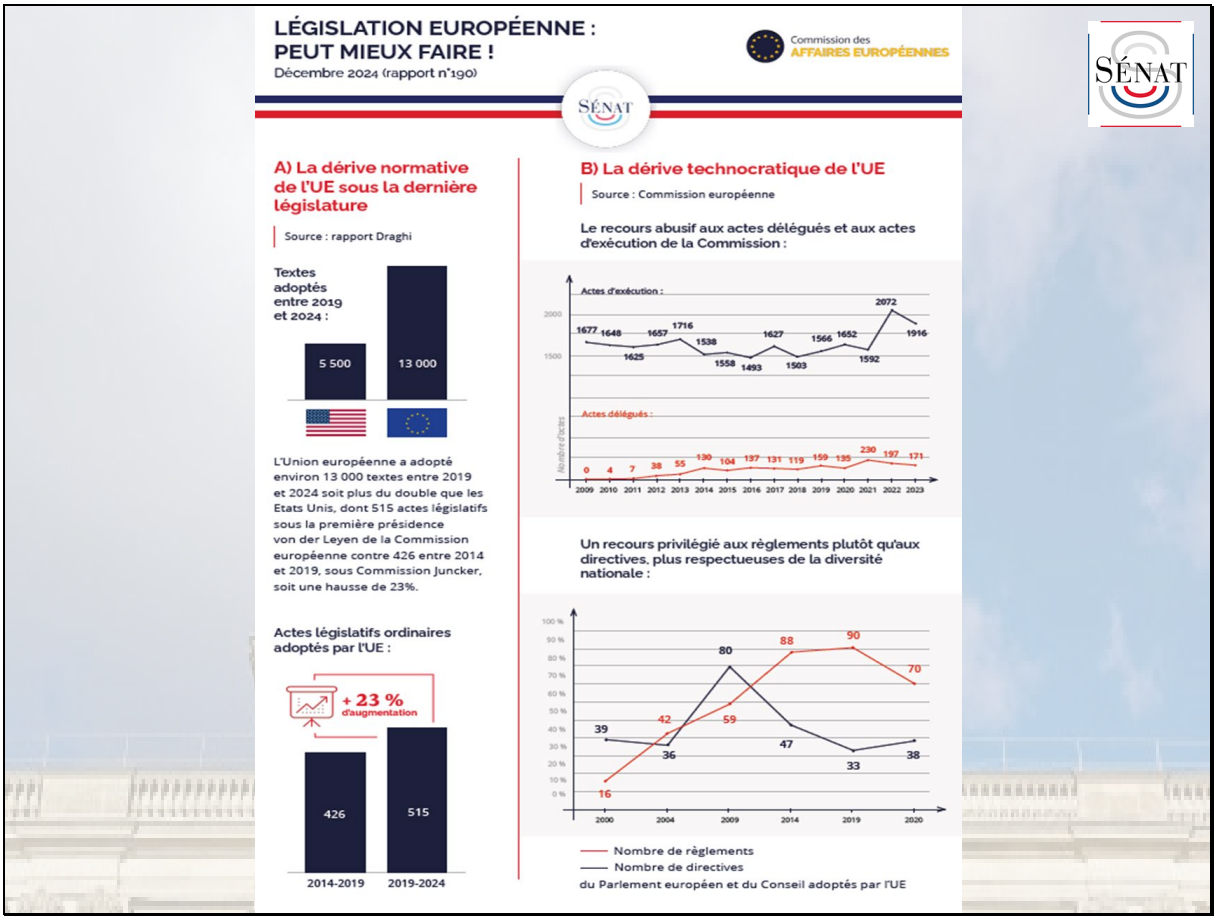
Regarding the major challenges facing the European Union today – war in Ukraine, ecological transition, migration, etc. – the expectations of its citizens are very high. Yet at the same time, as demonstrated by the rise of populist and extremist parties in the European elections of June 2024, the European Union is perceived as technocratic, remote and inefficient. It is criticised for an opaque and undemocratic decision-making process, disconnection from reality on the ground, and excessive and complex regulation that weighs heavily on national and local governments and hampers the competitiveness of businesses, as criticised by Mario Draghi in his September 2024 report...

So, can we really speak of a normative and technocratic drift of the European Union? At a time when the European Union has an essential role to play in meeting the many challenges of our time, how can we make the European Union's action more legitimate, more effective and more readily accepted by citizens? On the eve of a new European institutional cycle, the Senate's European Affairs Committee wanted to take stock of the situation and put forward a number of proposals. It entrusted three of its members with drawing up an information report on this subject: all three are convinced of the need for the European Union to exist and place certain requirements on it, as a remedy for growing mistrust.

A normative drift in the European Union that undermines it

A.EUROPEAN VOLUNTARISM FUELLING THE RISK OF REGULATORY DRIFT...

- Ursula von der Leyen's first term as President of the European Commission has been marked by **intense normative activity on the part of the European Union**. Faced with a succession of crises, from the migration crisis to the war in Ukraine and the COVID-19 pandemic, but also in response to the challenge of the dual transition, both ecological and digital, the European Union has had to adopt a large number of acts in recent years: **around 13,000 texts** between 2019 and 2024, **compared with 5,500 in the United States**.



A normative drift in the European Union that undermines it

- Certain texts, such as those introducing a duty of vigilance on the part of companies in environmental matters, banning the marketing in Europe of products derived from deforestation, and the regulation on waste and packaging management, have imposed heavy constraints on Member States, local authorities and companies, particularly SMEs. In his recent report, Mario Draghi points out that the European Union's gross domestic product is falling sharply due to a slowdown in growth and productivity. According to one study, **the EU's administrative burdens** represented an annual cost of around €150 billion, or **1.3% of** European **GDP**.

A normative drift in the European Union that undermines it

- We must also deplore the **sometimes fragile legal basis for European legislative initiatives** – based, sometimes questionably, on Articles 114, 122 and 352 of the TFEU – a growing preference for **regulations** rather than directives, which are more respectful of national diversity, and the Commission's **executive voluntarism**, reflected in the abusive use of **implementing acts** or **delegated acts**.

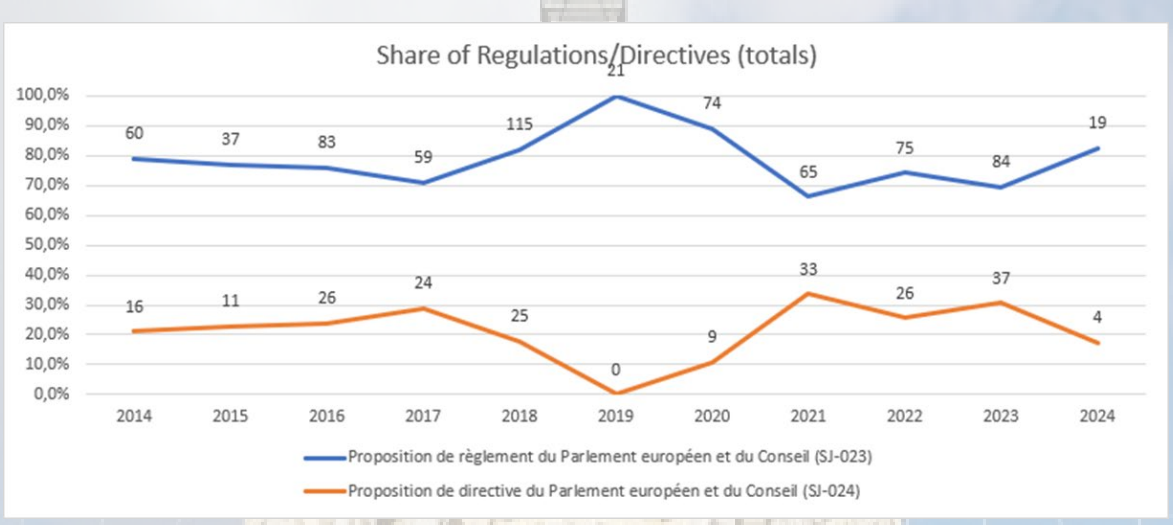
Share of propositions of regulations/directives

1) **les chiffres absolus et le pourcentage du total des propositions de règlement/directive** adoptées par la Commission par ans …

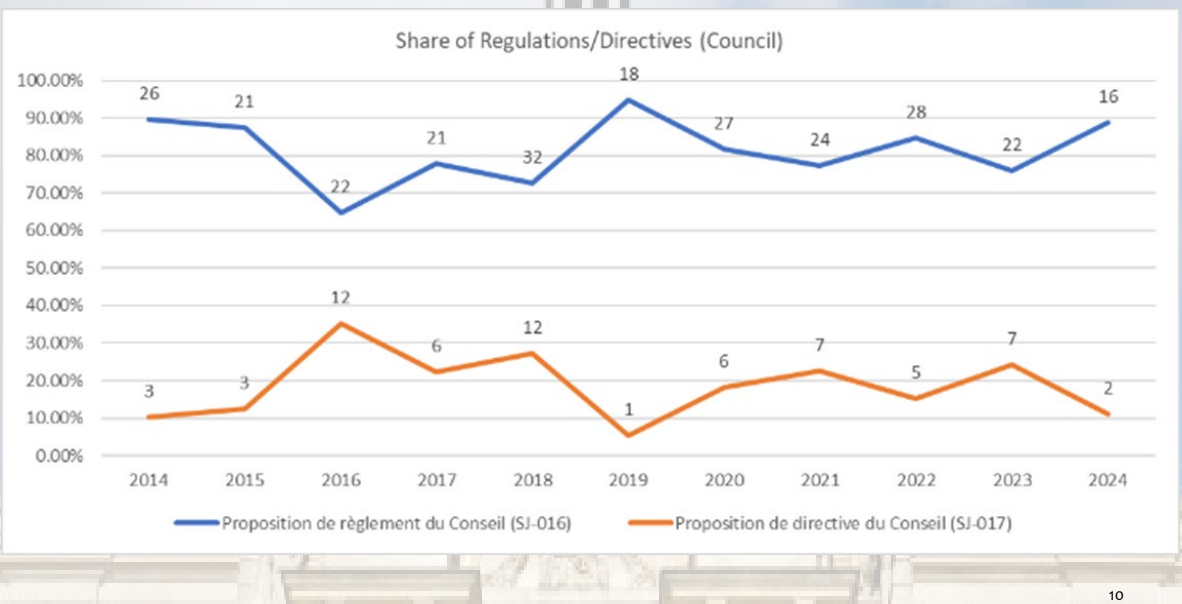
Nombre de propositions par type	**2014**	**2015**	**2016**	**2017**	**2018**	**2019**	**2020**	**2021**	**2022**	**2023**	**2024***	***Total***
Proposition de règlement du Parlement européen et du Conseil	60	37	83	59	115	21	74	65	75	84	19	*692*
Proposition de directive du Parlement européen et du Conseil	16	11	26	24	25	0	9	33	26	37	4	*211*
Total	*76*	*48*	*109*	*83*	*140*	*21*	*83*	*98*	*101*	*121*	*23*	***903***
Pourcentage du total	**2014**	**2015**	**2016**	**2017**	**2018**	**2019**	**2020**	**2021**	**2022**	**2023**	**2024**	***Moyenne***
Proposition de règlement du Parlement européen et du Conseil	78.9%	77.1%	76.1%	71.1%	82.1%	100.0%	89.2%	66.3%	74.3%	69.4%	82.6%	*76.6%*
Proposition de directive du Parlement européen et du Conseil	21.1%	22.9%	23.9%	28.9%	17.9%	0.0%	10.8%	33.7%	25.7%	30.6%	17.4%	*23.4%*
Différence:	57.9%	54.2%	52.3%	42.2%	64.3%	100.0%	78.3%	32.7%	48.5%	38.8%	65.2%	*53.3%*

* chiffres du 11-11-2024

Share of Regulations/ Directives (totals)



Share of Regulations/Directives (Council)



10

implementing acts and delegated acts

	2009	2010	2011	2012	2013	2014	2015	2016	2017	2018	2019	2020	2021	2022	2023
Actes délégués	0	4	7	38	55	130	104	137	131	119	159	135	230	197	171
Actes d'exécution	1677	1648	1625	1657	1716	1538	1558	1493	1627	1503	1566	1652	1592	2072	1916

11

B. WITHOUT SUFFICIENT INSTITUTIONAL BRAKES: TOWARDS A TECHNOCRATIC DRIFT?

. While **the European Commission has an eminent responsibility** due to its **monopoly of initiative** under the ordinary legislative procedure, the other European institutions, in particular **the Council and the European Parliament** – as co-legislators – also have a share of responsibility.

- Similarly, **the Court of Justice of the European Union**, through its interpretation of European rules, can contribute to the extension of the European Union's powers, sometimes infringing on the sovereignty of States, for example on the subject of working time for military personnel or the retention of connection data for intelligence or investigation purposes.
- The proliferation of **European agencies**, some of which have regulatory powers, also raises questions of legitimacy and governance.

BETTER LAWMAKING: WISHFUL THINKING?

- The concern for "better lawmaking" at the European level is not new. Over the last twenty years, the European Commission has taken a number of initiatives in this area: the obligation to present an impact assessment for all new legislative proposals, the creation of a regulatory scrutiny committee, and the “one in, one out” rule.
- Despite these measures, many of the legislative proposals put forward by the European Commission – such as the reform of the European electricity market or the simplification of the CAP – have not been accompanied by an impact assessment or by the withdrawal of standards on an equal footing. An **interinstitutional agreement on better lawmaking** was signed in 2016 between the three European institutions, which provides for an impact assessment for any substantial amendment by the Council or the European Parliament, but **in practice it is not respected**.

13

A.LEGISLATE ONLY WHERE NECESSARY AND IN ACCORD WITH THE POWERS OF THE MEMBER STATES

- **Proposal 1: Invite the Member States meeting in the Council to play their part in checking the legal basis of a European legislative initiative**
- As the French Conseil d’État points out in its latest annual study on sovereignty, *“strict compliance with the Treaties must always be and remain the basis for all European action”.* However, experience shows that **the legal basis and the choice of legal instrument are rarely examined in depth** when a legislative proposal is being considered by the Council.
- **Proposal 2: Provide for the inclusion in all European legislation of a “shield clause” preserving Member States’ competence in matters of public order and national security.**
- Taking up a recommendation of the Council of State, the French Senate’s European Affairs Committee calls for the negotiation of any new legislative proposal to include a **“shield clause”** preserving the role of Member States in matters of public order, national security and territorial integrity, particularly in texts dealing with police and judicial cooperation.

Proposal 3: Promote dialogue between national and European judges to ensure that each Member State is always in a position to accept its responsibilities.

In the face of growing threats, the aim of this dialogue is to ensure that the European courts, in their interpretation of the law, leave the Member States the necessary scope to exercise their sovereign powers, while respecting their constitutional identity.

Proposal 4: Prioritise the use of directives and limit the Commission's abusive use of implementing acts and delegated acts.

Directives are more respectful of the diversity of Member States, since they set objectives to be achieved while leaving Member States a margin to determine the means to be used to achieve them, while regulations are essentially directly applicable.

Delegated acts and implementing acts, which are outside the control of national parliaments, should be reserved for specifying non-essential elements of legislation and for implementing technical, rather than political, aspects of legislation.

BETTER LAWMAKING: SIMPLE, HIGH-QUALITY LEGISLATION

- **Proposal 5: Extend the scope and improve the quality of impact assessments**
- All legislative proposals from the European Commission should be accompanied by an **impact assessment that meets certain quality requirements**; the same should apply to other European Commission documents – communications, action plans, etc. – with legislative implications, as well as to substantial amendments from the Council and the European Parliament.
- **Proposal 6: Provide for systematic *ex-post* evaluation of legislative acts**
- It would also be useful to systematically provide for **an *ex-post* evaluation** a few years after a legislative act takes effect, in order to check in particular whether the objectives have been achieved. This implies inserting a rendez-vous clause in each legislative act.

A. BETTER LAWMAKING: SIMPLE, HIGH-QUALITY LEGISLATION

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Proposal 7: Reduce the administrative burden on businesses, particularly SMEs, by subjecting all new European initiatives to a competitiveness test on the global market and a reinforced SME test.

As Mario Draghi points out, lightening the "regulatory burden" on European businesses would make them more competitive on the global market. Without abandoning its ambitions, the European Union should introduce a "competitiveness test" and strengthen the "SME test" in impact studies, prior to the adoption of any new European act.

A. MOBILISE ALL THE PLAYERS WHO CAN CONTRIBUTE TO RESPECTING THE PRINCIPLES OF SUBSIDIARITY AND PROPORTIONALITY

Proposal 8: Make it easier for national parliaments to monitor compliance with the subsidiarity principle

In line with the proposals of the working group on national parliaments set up within the Conference of European Affairs Committees (COSAC) under the French Presidency of the Council, the period for monitoring compliance with the principle of subsidiarity should be extended from 8 to 10 weeks, and the threshold of votes triggering a "yellow card" should be lowered to one quarter.

Proposal 9: Encourage the Member States in the Council to examine the compliance of any European initiative with the principles of subsidiarity and proportionality before it is negotiated.

Member States should, prior to the substantive examination, carry out a systematic examination of any new legislative initiative from the point of view of subsidiarity and proportionality in order to check whether the proposal provides real "added value" and whether the means envisaged are proportionate, with the support of the General Secretariat of the Council.

Proposal 10: Reinstate the post of Vice-President of the European Commission with responsibility for simplification and subsidiarity.

As proposed by Mario Draghi, the simplification objective should be handled by a Vice-President of the European Commission. However, the simplification portfolio has been "demoted" within the new college proposed by Ursula von der Leyen.

A. TAKING GREATER ACCOUNT OF THE DIVERSITY OF MEMBER STATES

Proposal 11: Ensure respect for linguistic diversity and the place of French

Respect for linguistic diversity also helps to take better account of the reality on the ground. Faced with the trend towards “monolingualism” and the exclusive use of English within the European institutions, **we need to defend and promote respect for linguistic diversity and the place of French as an official and working language.**

Proposal 12: Take greater account of the specific characteristics of territories, particularly overseas territories.

Because of their geographical remoteness and specific characteristics, **the outermost regions should be able to benefit from special arrangements**, as provided for in Article 349 of the TFEU. This is all too rarely the case, particularly in the areas of energy, water management, waste treatment, agriculture and fisheries. **The European Commission should analyse the impact of any European legislative proposal on these regions**.



Jean-François Rapin
Committee Chairman
Senator (Les Républicains) for Pas-de-Calais



Catherine Morin-Desailly
Vice-Chairman
Senator (Union Centriste) for Seine-Maritime



Didier Marie
Vice-Chairman
Senator (Socialiste, Écologiste et Republican) for Seine-Maritime

European Affairs Committee
Telephone: 01 42 34 24 80
Consult the legislative dossier:
https://www.senat.fr/notice-rapport/2024/r24-190-notice.html

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6. PRESENTATION BY PROF. DR HELEN XANTHAKI

European Parliament

DIRECTORATE GENERAL FOR INTERNAL POLICIES

POLICY DEPARTMENT
CITIZENS' RIGHTS AND CONSTITUTIONAL AFFAIRS

Committee on Legal Affairs

Better EU legislation: the 2024 French Senat Report

The drafting aspect of the Report

- EU legislation: WE CAN DO BETTER!
  - With the major challenges now, the expectations of EU citizens are high
  - But the EU is perceived as technocratic, remote and inefficient
- Issues identified by the Senat's European Affairs Committee:
  - Bad regulation
    - disconnection from the realities on the ground
    - "the Commission's executive voluntarism": excessive implementing acts or delegated acts
  - Excessive regulation
    - EU's administrative burdens: €150 billion annually, or 1.3% of European GDP
  - Excessive legislation/Polynomia: 13,000 texts in 2019-2024 (5,500 in US)
  - Bad legislation/Kakonomia
    - growing preference for regulations rather than directives
    - few impact assessments
    - misapplication of the IAA on 'better lawmaking'

Can we act surprised? Parliaments consistently criticize EU Acts for complexity and intelligibility risking implementation and enforcement

1. UK on GDPR
2. France on CAP
3. Germany on the Water Framework Directive
4. Italy on Markets in Financial Instruments Directive (MiFID II)
5. Holland on Directive on the Energy Performance of Buildings (EPBD)
6. Spain on the Directive on Waste Electrical and Electronic Equipment (WEEE)
7. Denmark on Directive on Consumer Rights (CRD
8. Sweden on Directive on Payment Services (PSD2)
9. Poland on Directive on the Restriction of Hazardous Substances (RoHS)
10. Austria on Directive on Public Procurement
11. Finland on Directive on the Protection of Animals Used for Scientific Purposes
12. Portugal on Directive on the Deployment of Alternative Fuels Infrastructure
13. Ireland on Directive on the Protection of Personal Data
14. Belgium: Directive on the Energy Efficiency of Buildings
15. Greece on Directive on the Protection of the Environment through Criminal Law

Can we change that? YES WE CAN!

- Change the EU's legislative mentality to a **citizen-centered** law-maker
- Leave formalities and tradition to one side, and operationalise effectiveness
- To achieve efficacy, EU lawmakers must set a clear policy goal against which efficacy of regulation is set
- They must produce and effective draft text
- They must conduct pre and post legislative scrutiny undertaken by a learned and able EP
- And they must act upon post legislative scrutiny conclusions by taking action on ineffective EU laws [fine-tuning or repealing]

POLICY DEPARTMENT
CITIZENS' RIGHTS AND CONSTITUTIONAL AFFAIRS

How can we draft effective EU Acts: A new drafting style for EU Acts

- Part 1 (speaks to EU citizens)
  - Conveys the main regulatory message: what is in it for me
    - Why do we legislate (necessity)
    - What are we trying to achieve (regulatory goal)
    - What rights/obligations are introduced by virtue of the law
  - uses unsophisticated language
- Part 2 (speaks to MS)
  - obligations that MUST be adhered to
  - obligations that MAY be adhered to
- Part 3 (speaks to lawyers and judges)
  - conveys specialist data in legal language

Prof. Helen Xanthaki

The French Senat Report

- Not a surprise but a brilliant and eloquent wake-up call!
- We agree on the pathogenies of poly and kako regulation and legislation
- But the solution can come within the EU with
  - citizen centered law-making
  - expressed in citizen-centered drafting style for EU Acts
  - speaking to citizens, MS authorities, and lawyers
- What for?
  - Survival against populism and extremism
  - For competitiveness and longevity

What next? Who, when, and how to lead on better law-making?

- What next? Systematic and periodic reflection led by JURI Committee with experts from European academia
- How? JURI to designate a Working Group on Better Law-Making
  - Presided by a Standing Rapporteur for Better Law-making
  - With multi-disciplinary experts from UCL, UoLondon, UoStockholm, EUI, Nijmegen, Genova, Palermo etc.
  - Meeting periodically, twice a year
  - To assess each part of law-making and recommend better operationalisation for effectiveness
  - Starting now with
    - The content of the upcoming Interinstitutional Agreement perhaps proposing change in the style of drafting of EU laws, and
    - Using upcoming legislation as case-studies such as the AI liability Directive or the virtual worlds laws.

POLICY DEPARTMENT
CITIZENS' RIGHTS AND CONSTITUTIONAL AFFAIRS

Presentation by

Prof. Dr Helen XANTHAKI

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7. PRESENTATION BY PROF. DR MAURO ZAMBONI

European Parliament

DIRECTORATE GENERAL FOR INTERNAL POLICIES

POLICY DEPARTMENT
CITIZENS' RIGHTS AND CONSTITUTIONAL AFFAIRS

Committee on Legal Affairs

Participatory Democracy & Legislative Drafting in the EU

What is Participatory Democracy?

Article 11 of the Lisbon Treaty enshrines participatory democracy in EU governance.

Consultation is not enough; clear legislative texts are necessary for meaningful engagement.

The Role of Legislative Drafting

Legislation is communication.

EU laws must be clear for governments, businesses, and citizens to understand and implement.

Who Are the Real Addressees?

EU laws are meant for:

- Citizens: Struggle with complexity.
- National Institutions: Find laws difficult to implement.
- EU Institutions: Often draft laws primarily for themselves.

The Role of AI in Legislative Clarity

AI aids in legal clarity but should not replace proper drafting.

AI should help analyze text complexity before implementation, not be used as a post-hoc solution.

Conclusion

- Participatory democracy depends on clear and accessible legislation.
- Clarity in drafting is essential for compliance, implementation, and public trust in the EU.

Presentation by

Prof. Dr. Mauro Zamboni

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POLICY DEPARTMENT
CITIZENS' RIGHTS AND CONSTITUTIONAL AFFAIRS

The Policy Hub focused on legislative drafting and the challenges of EU regulation. Academics highlighted issues of excessive legislation, the EU's technocratic image, and the need for clearer, citizen-centered laws. Invited academics emphasized simplifying legal texts, improving legislative scrutiny, and fostering collaboration with academia. The French Senate's report was praised as a wake-up call, urging a shift towards effective, accessible lawmaking to enhance the EU's competitiveness, legitimacy, and long-term sustainability.

This study, commissioned by the European Parliament's Policy Department for Justice, Civil Liberties and Institutional Affairs for the JURI Committee.

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